

Nagar Panchayat Rafiganj Plastic Waste Management Bye-laws, 2018

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State of Bihar - Act

Nagar Panchayat Rafiganj Plastic Waste Management Bye-laws, 2018

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Nagar Panchayat Rafiganj Plastic Waste Management Bye-laws, 2018

Rule NAGAR-PANCHAYAT-RAFIGANJ-PLASTIC-WASTE-MANAGEMENT-BYE-LAWS-2018 of 2018

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Nagar Panchayat Rafiganj Plastic Waste Management Bye-laws, 2018

Published vide Notification No. 03/SBM-01-42/2018/2904 A, dated 11.12.2018

No. 03/SBM-01-42/2018/2904 A. - Urban Local Bodies have been mandated by Rule-6(4) of the Plastic Waste Management Rules, 2016 made under the Environment (Protection) Act, 1986 notified by the Ministry of Environment, Forest and Climate Change, Government of India to make Bye-laws in incorporating the provisions of the said Rule. In this respect, notification No.-25/2018 dated-15.10.2018 has been notified by the Environment, Forest and Climate Change Department, Government of Bihar.

For implementation and standardization of the Plastic Waste Management Rules, 2016 and the notification of the Environment, Forest and Climate Change Department, Government of Bihar, the Model Bihar Municipal Plastic Waste Management Bye-laws, 2018 was published vide notification No.-2540, dated-12.10.2018.

The said Model Bye-laws have been passed by Proposal No.-01, dated- 03.11.2018 of the Board of Nagar Panchayat

Rafiganj complying with the provisions of subsections-(a), (b) and (c) of Section-422 of the Bihar Municipal Act, 2007. Now, therefore, in exercise of the powers conferred under Section- 423 of the Bihar Municipal Act, 2007, the Bye-laws passed by proposal No.-01, dated-03.11.2018 of the Nagar Panchayat Rafiganj is hereby approved.

It shall be effective from the date of its publication in the official gazette.

Chapter - I Preliminary

1.

Short Title and Commencement.

- (i) These bye-laws shall be called the Nagar Panchayat Rafiganj Plastic Waste Management Bye-laws, 2018.

(ii)

It shall come into force after 60 days from the date of publication of Gazette Notification on Plastic Carry bag by Department of Environment, Forest and Climate Change, Government of Bihar.

2.

Application.

- (i) These bye-laws shall apply to every waste generator, manufacturer, producer, importer, brand owner and users available within the jurisdiction of Nagar Panchayat Rafiganj.

(ii)

The bye laws shall not apply to the export oriented units or units in special economic zones, notified by the Central Government, manufacturing their products against an order for export:

Provided this exemption shall not apply to units engaged in packaging of gutkha, tobacco and pan masala and also to any surplus or rejects, left over products and the like.

3.

Definitions.

- In these bye laws, unless the context otherwise requires.-

(a)

"Act" means the Environment (Protection) Act, 1986 (29 of 1986);

(b)

"brand owner" means a person or company who sells any commodity under a registered brand label;

(c)

"carry bags" mean bags made from plastic material or compostable plastic material, used for the purpose of carrying or dispensing commodities which have a self-carrying feature but do not include bags that constitute or form an integral part of the packaging in which goods are sealed prior to use;

(d)

"commodity" means tangible items that may be bought or sold and includes all marketable goods or wares;

(e)

"compostable plastics" means plastic that undergoes degradation by biological processes during composting to yield CO₂, water, inorganic compounds and biomass at a rate consistent with other known compostable materials, excluding conventional petro-based plastics, and does not leave visible, distinguishable or toxic residue;

(f)

"food-stuff" means ready to eat food products, fast food, processed or cooked food in liquid, powder, solid or semi-solid form;

(g)

"facility" means the premises used for collection, storage, recycling, processing and disposal of plastic waste;

(h)

"importer" means a person who imports or intends to import and holds an Importer -Exporter Code number, unless otherwise specifically exempted;

(i)

"institutional waste generator" means and includes occupier of the institutional buildings such as buildings occupied by Central Government Departments, State Government Departments, public or private sector companies, hospitals, schools, colleges, universities or other places of education, organisations, academy, hotels, restaurants, malls and shopping complexes;

(j)

"manufacturer" means and includes a person or unit or agency engaged in the production of plastic raw material to be used as raw material by the producer;

(k)

"multilayered packaging" means any material used or to be used for packaging and having at least one layer of plastic as the main ingredients in combination with one or more layers of materials such as paper, paper board, polymeric materials, metalised layers or aluminium foil, either in the form of a laminate or co-extruded structure;

(l)

"plastic" means material which contains as an essential ingredient a high polymer such as polyethylene terephthalate, high density polyethylene, Vinyl, low density polyethylene, polypropylene, polystyrene resins, multi-materials like acrylonitrile butadiene styrene, polyphenylene oxide, polycarbonate, Polybutylene terephthalate;

(m)

"plastic sheet" means sheet made of plastic;

(n)

"plastic waste" means any plastic discarded after use or after its intended use is over;

(o)

"producer" means persons engaged in the manufacture or import of carry bags or multilayered packaging or plastic sheets or like, and includes industries or individuals using plastic sheets or like or covers made of plastic sheets or multilayered packaging for packaging or wrapping the commodity;

(p)

"recycling" means the process of transforming segregated plastic waste into a new product or raw material for producing new products;

(q)

"registration" means registration with the Bihar State Pollution Control Board or the ULB, as the case may be;

(r)

"street vendor" means a person engaged in vending of articles, goods, wares, food items or merchandise of everyday use or offering services to the general public, in a street, lane, side walk, footpath, pavement, public park or any other public place or private area, from a temporary built up structure or by moving from place to place and includes a hawker, peddler, squatter and all other synonymous terms which may be local or region specific; and the words "street vending" with their grammatical variations and cognate expressions, shall be construed accordingly;

(s)

"Thermoset plastic" when cured by heat or other means, changes into a substantially infusible or insoluble product. The thermoset polymer is a kind of plastic which, due to its composite chemical structure cannot be re-moulded / recycled.

(t)

"ULB" means and will refer to municipality as specified under section 2 (66) of Bihar Municipal Act, 2007, wherever it has been used;

(u)

"virgin plastic" means plastic material which has not been subjected to use earlier and has also not been blended with scrap or waste;

(v)

"waste generator" means and includes every person or group of persons or institution, residential and commercial establishments including Indian Railways, Airport, Port and Harbour which generate plastic waste;

(w)

"waste management" means the collection, storage, transportation reduction, re-use, recovery, recycling, composting or disposal of plastic waste in an environmentally safe manner,

(x)

"waste pickers" mean individuals or agencies, groups of individuals voluntarily engaged or authorised for picking of recyclable plastic waste.

Chapter-II Management of Plastic Waste

4.

Plastic Waste Management.

- The Nagar Panchayat Rafiganj shall manage plastic waste in its respective jurisdiction as follows:

(a)

The plastic waste other than plastic carry bags, which can be recycled, shall be channelized to registered plastic waste recyclers and recycling of plastic shall conform to the Indian Standard: IS 14534:1998 titled as Guidelines for Recycling of Plastics, as amended from time to time;

(b)

ULB shall encourage the use of plastic waste (preferably the plastic waste which cannot be further recycled) for road construction as per Indian Road Congress guidelines or energy recovery or waste to oil, etc. The standards and pollution control norms specified by the Central Pollution Control Board (CPCB) and/or Bihar State Pollution Control Board (BSPCB) for these technologies shall be complied with;

(c)

Thermoset plastic waste shall be processed and disposed off as per the guidelines issued from time to time by the Central Pollution Control Board and/or Bihar State Pollution Control Board;

(d)

The inert from recycling or processing facilities of plastic waste shall be disposed of in compliance with the Solid Waste Management Rules, 2016 or as amended from time to time;

5.

Conditions to be fulfilled.

- the Government of Bihar is of the considered view that the use of plastic carry bags is causing grave injury and irreparable damage to the environment due to blockage of gutters, sewers and drains, adversely impacting ground water recharge and emissions from advertent and inadvertent burning resulting in serious environmental problems there by affecting the health of human beings and its consumption by bovines while grazing is causing serious damage to health and longevity of cattle. Under these circumstances, it has become necessary to impose blanket ban on the manufacture, import, storage, transport, sale and usage of plastic carry bags in the whole jurisdiction of urban local body.

(i)

No person shall manufacture, import, store, distribute, sell, transport or use any kinds of plastic carry bags (irrespective of their sizes and thickness) in the jurisdiction of urban local body.

(ii)

No person including a shopkeeper, vendor, wholesaler, retailer, trader, hawker, feriwala or sabjiwala shall sell or store or distribute or use any kind of plastic carry bags for storing or dispensing of any eatable or non-eatable goods or materials.

(iii)

The manufacture, import, stocking, distribution, sale and use of plastic carry bags for storage of Bio-medical waste, polybags used for seedlings, plastic sheets or like, or cover made of plastic sheet and multilayered packaging, shall be subject to the following conditions, namely:-

(a)

The plastic carry bags used for storage of bio-medical waste shall be exempted from the provisions of this bye-law. However the plastic carry bags shall not be less than fifty microns in thickness and should also comply to the provisions made in the rule 4 (clause d & i) and schedule IV of the Bio-Medical Waste Management Rules, 2016. The plastic carry bags containing bio-medical waste should be disposed of in compliance to the provisions made in Bio-Medical Waste Management Rules, 2016.

(b)

Products made of recycled plastic shall not be used for storing, carrying, dispensing or packaging ready to eat or drink food stuff.

(c)

Carry bag made of virgin or recycled plastic, shall be banned in the jurisdiction of Nagar Panchayat Rafiganj irrespective of its thickness.

(d)

The State Environment & Forest Department should ensure that polybags used for propagation of seedlings shall not be less than fifty microns in thickness and shall also ensure collection of all used polybags in one place and ensure safe disposal of these polybags.

(e)

The private nurseries should ensure polybags of more than fifty microns in thickness shall be used for propagation of seedlings. The private nurseries shall also ensure reuse of these polybags to the maximum extent possible.

(f)

The private and government nurseries shall ensure collection of all used polybags in one place and can hand it over to the urban local body (ULB) by giving such user fees as prescribed in the Municipality Solid Waste Management Bye-laws, 2018.

(g)

Plastic sheet or like, which is not an integral part of multilayered packaging and cover made of plastic sheet used for packaging, wrapping the commodity shall not be less than fifty microns in thickness except where the thickness of such plastic sheets impairs the functionality of the product;

(h)

The manufacturer shall not sell or provide or arrange plastic to be used as raw material to a producer, not having valid registration from the Bihar State Pollution Control Board;

(i)

Sachets using plastic material shall not be used for storing, packing or selling gutkha, tobacco and pan masala.

(j)

Plastic material, in any form including Vinyl Acetate - Maleic Acid - Vinyl Chloride Copolymer, shall not be used in any package for packaging gutkha, pan masala and tobacco in all forms.

Chapter-III Marking or Labeling of Plastic Sheet/Multilayered Packaging

6.

(i)

Retailers or street vendors shall not sell or provide commodities to consumer in plastic sheet or multilayered packaging, which are not manufactured and labeled or marked, as prescribed under this bye-law.

(ii)

Every retailer or street vendor selling or providing commodities in multilayered packaging or plastic sheets or like or covers made of plastic sheets which are not manufactured or labeled or marked in accordance with this bye-law shall be liable to pay such fines as specified in Schedule-I under the bye-law of the local body.

(iii)

The multilayered packaging shall have the Name and registration number of the manufacturer printed in English in case of multilayered packaging.

Chapter-IV Registration of Producer, Recyclers and Manufacturer

7.

(i)

As per the provisions made in Rule 5 (i) no person shall manufacture plastic carry bags or recycle plastic carry bags. However manufacturing of multilayered packaging materials can be done only after obtaining a valid registration from the Bihar State Pollution Control Board, prior to the commencement of production.

(ii)

All producer, recycler and manufacturer of plastic materials, multilayered packaging shall obtain registration and renewal with Bihar State Pollution Control Board, as per the provisions made in the Plastic Waste Management Rule 2016.

Chapter-V Collection, Segregation, Processing of Plastic Waste

8.

(i)

Collection, segregation, processing of plastic waste shall be done as follows:

(a)

Urban local body will take steps to minimize generation of plastic waste and to segregate plastic waste at source.

(b)

ULB shall take steps to minimize litter of plastic waste and ensure segregated storage of waste at secondary storage depots/community bins. The plastic waste shall be collected in the non-biodegradable or dry waste bins only.

(c)

At the secondary storage points / depots / transfer stations, ULB shall encourage waste pickers and other social entrepreneurs to remove constituents such as plastic, glass and paper for recycle and reuse. The informal waste pickers

shall also directly allowed to collect the dry recyclables and sell it to the authorized recyclers for earning of their livelihood.

(d)

ULB shall ensure source segregation of wet and dry waste and inert materials through establishment of Material Recovery Facility with arrangements of separate bins or storage chambers for sorting and storing of dry waste such as Paper, plastic, iron, glass, e-waste, polythene, rugs, leather, shoes, pet bottles, rubber etc.

(e)

The ULB can also explore other Plastic Waste Management technology such as: plasma pyrolysis technology, installation of bailing press & making of Refuse Derived Fuel (RDF), co-processing of plastics waste in cement kiln and plastic shredding as per requirement and local condition.

(f)

The ULB shall actively work towards the transformation of rag pickers by utilizing them in MRF and Plastic Waste Management Facility.

(g)

The ULB shall continuously organize sensitization sessions, program on health issues, livelihood and income generating activities for informal waste pickers/kabadiwallas and SHGs.

(h)

Vocational trainings like paper bag making, carton bag, tailoring, cushion making etc. should also be imparted.

Chapter-VI Monitoring Mechanism

9.

Monitoring of Plastic Waste Management.

- (a) District Level Review and Monitoring Committee. - The committee constituted as per Bihar Municipality Solid Waste Management Bye-laws, 2018 under the Chairmanship of District Magistrates will review and advise the local body on successful implementation of the provisions of these bye-laws.

(b)

Constitution of city squad/task force. - The district administration shall ensure constitution of city squad/task force consisting of administrative as well as ULB officials and members from the community to enforce implementation in the jurisdiction of local body. The city squad shall consist of following members:

(i)

Officials of District Administration

(ii)

Officials of the ULB (Municipal Commissioner/Executive Officer/City Manager/Assistant Engineer).

(iii)

Officials of Police Department (Inspector/Sub-inspector).

(iv)

Officials of State Pollution Control Board (Regional Officers/AEEs/Scientist)

(v)

Members from Local NGOs

(vi)

Members from SHGs

The role of this city squad is to confiscate the polythene carry bags irrespective of its thickness and to impose fines for violation of these byelaws as per schedule-I. The unauthorised units will be asked to shutdown.

Chapter-VII Users fee and Fine

10.

Application of User fee for plastic waste collection, operation and management.

(a)

Fifteen percent (15%) of the user fee collected as per SWM bye-laws by urban local body shall be transferred to plastic waste management account for the purpose of the management of plastic waste.

11.

Fines on violation.

(a)

On and after the date of commencement of these bye-law, there will be a familiarization/warning period till 13th December, 2018 as per notification on Plastic carry bag by Department of Environment, Forest & Climate Change, Government of Bihar, after which, any contravention of this bye-law shall be punishable with fines as prescribed in Schedule-I for every instance of breach of this bye-law.

(b)

If any shopkeeper or street vendor is found providing plastic carry bags for dispensing any commodity in the jurisdiction of urban local body, the ULB shall impose a fine as specified in schedule-I for every such occurrences;

(c)

If any shopkeeper or street vendors sells or provides commodities in plastic carry bags or multilayered packaging or plastic sheets or like or covers made of plastic sheets which are not manufactured or labeled or marked in accordance with these bye-laws shall be liable to pay such fines as specified in schedule-I for every such occurrence;

(d)

Nagar Panchayat Rafiganj shall collect fine on the spot through the authorized official or city squad as formed under Rule 9 (b) above.

12.

Action in case of defaulter.

- Any manufacturer, producer, importer, stockiest, wholesaler, retailer, shopkeeper, street vendor who does not pay the fine shall be liable for recovery to the urban local body as arrear of property tax. Action will be taken against repeated offenders in terms of the provisions of section 426 of Bihar Municipal Act, 2007.

Chapter-VIII Application and Annual Returns

13.

Application and Annual Returns(PWM Rules,2016).

(a)

Every producer shall, for the purpose of registration or for renewal of registration, make an application to the Bihar State Pollution Control Board in Form I as per the provision of Plastic Waste Management Rules, 2016.

(b)

Every person recycling or processing waste or proposing to recycle or process plastic waste shall make an application to the Bihar State Pollution Control Board for grant of registration or renewal of registration for the recycling unit, in Form-II as per the provision of Plastic Waste Management Rules, 2016.

(c)

Every manufacturer engaged in manufacture of plastic in the jurisdiction of urban local body to be used as raw material by the producer shall make an application to the Bihar State Pollution Control Board for the grant of registration or for the renewal of registration, in Form III.

(d)

Every person engaged in recycling or processing of plastic waste shall prepare and submit an annual report in Form-IV to Urban Local Body under intimation to the Bihar State Pollution Control Board by the 30th April, of every year.

(e)

Nagar Panchayat Rafiganj shall prepare and submit an annual report in Form-V to the Secretary in-charge of the Urban Development Department under intimation to the Bihar State Pollution Control Board by the 30th June, every year.

Chapter-IX Stakeholder's Responsibilities

14.

Stakeholder's Responsibilities.

- 14.1. Responsibility of the Nagar Panchayat Rafiganj

(a)

ULB shall develop infrastructure for segregation, collection, storage, transportation, processing and disposal of the plastic waste either on its own or through any other government agency or by engaging agencies or producers;

(b)

ULB shall be responsible for co-ordination of the waste management system and for performing the associated functions, namely;

i. Ensure segregation, collection, storage, transportation, processing and disposal of plastic waste;

ii. Ensure that no damage is caused to the environment during this process;

- iii. Ensure channelization of recyclable plastic waste fraction to recyclers;
- iv. Ensure processing and disposal of non-recyclable fraction of plastic waste in accordance with the guidelines issued by the Central Pollution Control Board;
- v. Create awareness among all stakeholders about their responsibilities;
- vi. Engage civil societies or groups working with waste pickers,
- vii. Ensure that open burning of plastic waste does not take place.

(c)

ULB shall establish plastic waste collection center on its own or by engaging any agency, where any waste generator or waste pickers can directly deposit plastic wastes. This will also be the place for dissemination of information on waste reduction, source segregation of waste, prohibition on open burning of plastic waste, etc. for sensitization.

(d)

The ULB shall encourage the minimisation of plastic use within its jurisdictional limits by generating awareness on the problems presented by excessive use of plastic, the short term and long term effects of plastic waste on the environment, alternate non-plastic substitutes of plastics etc., on a continuous basis and shall provide budget for the same.

(e)

The fund collected by the ULB as fine shall be kept in a separate account and shall be utilized for infrastructure, logistics and for the overall sustainability of the waste management system within their jurisdictions.

(f)

The urban local body, for setting up of system for plastic waste management, shall seek assistance of manufacturer, producers, and brand owners.

14.2

Responsibility of waste generator. - (a) The Waste Generator shall

- i. take steps to minimize generation of plastic waste and segregate plastic waste at source in accordance with the Solid Waste Management Rules, 2016 or as amended from time to time and store it in the bin meant for non-biodegradable waste;
- ii. not litter the plastic waste and ensure segregated storage of waste at source and handover segregated waste to the waste collector or agencies authorized by the urban local body for waste collection or handover to registered waste pickers', registered recyclers.

(b)

All institutional generators of plastic waste shall segregate and store the waste generated by them in accordance with the Solid Waste Management Rules, 2016 or as amended from time to time.

(c)

All waste generators shall pay such user fee or charge as may be specified in the Bihar Municipality Solid Waste Management Bye-laws, 2018 for plastic waste management such as waste collection or operation of the facility thereof, etc.,

(d)

Every person responsible for organising an event or gathering of more than one hundred persons in open space, which involves service of food stuff in plastic or multilayered packaging shall segregate and manage the waste generated during such events. The person should inform the ULB at least 3 working days prior to the date of event/function and request the ULB to place two numbers of 1.1 cum container for storage of such segregated waste by paying daily rental charges as fixed by Nagar Panchayat Rafiganj.

14.3

Responsibility of producers, importers and brand owners. - (a) The producers, within a period of six months from the date of publication of this bye-law, shall work out modalities for waste collection system based on Extended Producers Responsibility and involving State Urban Development Departments, either individually or collectively, through their own distribution channel or through the local body concerned.

(b)

The producer shall register with the Bihar State Pollution Control Board.

(c)

All the producers, brand owners or importers who sell or market their products using multi-layered plastic sachet or

pouches or packaging, etc. are primarily responsible to establish the system of collecting back the plastic waste generated due to their products.

(d)

Primary responsibility for collection of used multi-layered plastic sachet or pouches or packaging is of Producers, Importers and Brand Owners who introduce the products in the market. They need to establish a system for collecting back the plastic waste generated due to their products. This plan of collection is to be submitted to the State Pollution Control Boards while applying for Consent to Establish or Operate or Renewal.

(e)

Every producer shall maintain a record of details of the person engaged in supply of plastic used as raw material to manufacture plastic sheets or like or cover made of plastic sheet or multilayered packaging.

(f)

The manufacturer/brand owner/producer of recyclable multilayered and paper-based carton packaging material using plastic, shall diligently implement their Extended Producer's Responsibility (EPR) Plan which includes co-ordination/ collaboration with existing Waste Pickers/Scrap Traders, retailers for collection of plastic waste and its subsequent recycling and final disposal through their own established recycling plants or registered recyclers by establishing Producer's Responsible Organisations (PRO), which shall be responsible for 100% integral Plastic Waste Management right from collection to final disposal.

(g)

It shall be the sole responsibility of the PET Bottle producer/industries to ensure that these bottles are collected from retailers at refund rate or buy back rate as decided by the producers and also ensure that these are recycled. It is the responsibility of the producers to print clearly the refund/buy-back price on the PET bottles.

(h)

It shall be mandatory on the part of the bulk consumers of PET bottles such as hotels, marriage/ party halls, outdoor event locations, offices/institutions provide space for collection of plastic waste.

(i)

Manufacturing associations for retail packaging material and retailer's associations shall collectively work to create a mechanism for the collection of plastic packaging material used for packaging of groceries and grains through a buy-back mechanism and ensure the recycling and final disposal of the collected plastic materials.

14.4

Responsibility of retailers, street vendors, eateries/ sabjiwalla etc. - (a) No person including a shopkeeper, vendor, wholesaler, retailer, trader, eatery, hawker, feriwala or sabjiwala shall sell or store or distribute or use any kind of plastic carry bags for storing or dispensing of any eatable or non-eatable goods or materials.

(b)

The shopkeeper, vendor, wholesaler, retailer or trader of plastic carry bags shall phase out the use, sell or stock within a period of 60 days (i.e., by 13.12.2018) of notification on plastic carry bag by Department of Environment, Forest & Climate Change, Government of Bihar and beyond such time period the sale, store or use of any such plastic carry bag shall be subject to fine as specified in Schedule-I of these bye-laws.

(c)

Every retailer or street vendor selling or providing commodities in multilayered packaging or plastic sheets or like or covers made of plastic sheets which are not manufactured or labelled or marked in accordance with these rules shall be liable to pay such fines as specified under Schedule-I of these bye-laws.

14.5

Responsibilities of State Pollution Control Board (SPCB), Bihar. - (a) The State Pollution Control Board shall be the authority for enforcement of the provisions of these rules relating to registration, manufacture of plastic products and multilayered packaging, processing and disposal of plastic wastes;

(b)

State Pollution Control Board, Bihar shall prepare and submit an annual report on implementation of PWM Rule 2016 to the Central Pollution Control Board (CPCB) by 31st July, of every year.

14.6

Responsibilities of District Level Review & Monitoring Committee. - District Level Review and Monitoring Committee shall undertake the following actions:

(a)

Review and monitor the works related to solid and plastic waste management activity.

(b)

Review the action plan of Urban Local Bodies of the district on solid and plastic waste management and ensure implementation of all the provisions of Solid and Plastic Waste Management Rules, 2016.

(c)

Direct the Urban Local Bodies to prepare the baseline database and situation analysis of Solid and Plastic Waste.

(d)

Monitor the progress of the campaign of solid waste/plastic waste management and make periodic corrections as needed and participate in regular review and co-ordination with the Urban Development and Housing Department and other state coordination agencies.

(e)

Review the performance of Urban Local Body at least once in a quarter on solid and plastic waste management and identify and allocate suitable land to the Urban Local Body for setting up solid waste processing disposal facility.

(f)

Direct and work in coordination with support organisations, line departments and civil society organisations in setting up systems that enable community level monitoring and management of solid and plastic waste.

(g)

Entrust responsibility to any committee/sub-committee for ward-level monitoring in consultation with the Urban Local Body.

14.7

Responsibilities of City Squad/task force. - The City Squad/task force shall undertake the following actions:

(a)

Conduct surprise inspections in various shops, eateries, sabjiwalla & commercial shops across the city and seize banned plastic carry bags being used by these traders.

(b)

Confiscate the banned polythene packaging material and allied products having thickness less than 50 microns and not labelled or marked as per provisions made in Plastic Waste Management Rules, 2016.

(c)

Collect such fines from the defaulter as prescribed in Schedule- I of this bye-law.

(d)

Stop inter-state movement and sale of plastic carry bags in the city.

(e)

Prevent any person/trader/stockist from any outside areas from selling plastic carry bags in the city.

I

Sl. No

Offence

Compounding Charges

1st Instance

2nd Instance

At every repeated Instance

1

Production, distribution, trading, storage, sale
of plastic carry bags irrespective of its thickness and sizes.

2000

3000

5000

2

User of Plastic Carry Bags

(i)

Commercial Users

1500	
2500	
3500	
(ii)	
Domestic Users	
100	
200	
500	
3	
Using, selling or providing commodities in multilayered packaging or plastic sheets or like or covers made of plastic sheets which are not manufactured or labeled or marked in accordance with the provisions of Plastic Waste Management Rules, 2016	
2000	
3000	
5000	
4	
Open burning of Plastic waste	
2000	
3000	
5000	
5	
Littering of Plastic Waste in public places, parks, drains, archeological sites and other restricted places.	
1000	
1500	
2000	
6	
Every person responsible for organising an event or gathering of more than one hundred persons without informing the Urban Local Body and making arrangements as per these bye-laws.	
1500	
2000	
2500	
*Banned goods found with any anybody (manufacturer, producer, importer, retailer, street vendor, stockist etc.) as mentioned in the provision of this bye-law shall be seized and confiscated on the spot.	
Form-IV	
(of Plastic Waste Management Rules, 2016)	
(Under Rules 17 (1))	
Format of Annual Report by Operator of Plastic Waste Processing or Recycling Facility To Be Submitted To The urban Local Body	
Period of Reporting	
1	
Name and address of the operator of the facility	
2	
Name of the officer in charge of the facility	
Telephone:	
Fax:	
Mobile:	

E-mail:

3

Capacity:

4

Technologies used for management of plastic waste:

5

Quantity of plastic waste received during the year being reported upon along with the source

6

Quantity of plastic waste processed (in tons):

-Plastic waste recycled (in tons)

-Plastic waste processed (in tons)

-Used (in tons)

7

Quantity of inert or rejects sent for final disposal to landfill sites:

8

Details of land fill facility to which inert or rejects were sent for final disposal:

- Address

-Telephone

9

Attach status of compliance to environmental conditions, if any specified during grant of consent or registration

Dated :

Place:

Signature of Operator

Form-V

(Of Plastic Waste Management Rules, 2016)

(Under Rules 17 (2))

Format for Annual Report on Plastic Waste Management to be Submitted by the Urban Local Body to Secretary-Incharge of the Urban Development and Housing Department

Period of Reporting:

1

Name of the City or Town and State

2

Population

3

Area in sq. kilometers

4

Name & Address of Urban Local Body

Telephone No.

Fax No.

E-mail:

5

Total Numbers of the wards in the area under jurisdiction

6

Total Numbers of Households in the area under jurisdiction

7

Number of households covered by door to door collection

8

Total number of commercial establishments and Institutions in the area under jurisdiction

-Commercial establishments

- Institutions

9

Number of commercial establishments and Institutions covered by door to door collection

-Commercial establishments

- Institutions

10

Summary of the mechanisms put in place for management of plastic waste in the area under jurisdiction along with the details of agencies involved in door to door collection

11

Attach details of infrastructure put in place for management of plastic waste generated in the area under jurisdiction

12

Attach details of infrastructure required, if any along with justification

13

Quantity of Plastic Waste generated during the year from area under jurisdiction (in tons)

14

Quantity of Plastic Waste collected during the year from area under jurisdiction (in tons)

15

Quantity of plastic waste channelized for recycling during the year (in tons)

16

Quantity of plastic waste channelized for use during the year (in tons)

17

Quantity of inert or rejects sent to landfill sites during the year (in tons)

18

Details of each of facilities used for processing and disposal of plastic waste

Facility-I

Name of operator

Address

Telephone Number or Mobile

Capacity

Technology Used

Registration Number

Validity of Registration (up to)

Facility-II

Name of operator

Address

Telephone Number or Mobile

Capacity

Technology Used

Registration Number

Validity of Registration (up to)

19

Give details of: Urban Local Body's own manpower deployed for collection including street sweeping, secondary storage, transportation, processing and disposal of waste

20

Give details of: Contractor or concessionaire's manpower deployed for collection including street sweeping, secondary storage, transportation, processing and disposal of waste

21

Mention briefly, the difficulties being experienced by the urban local body in complying with provisions of these rules including the financial constraints, if any

22

Whether an Action Plan has been prepared for improving solid waste management practices in the city? If yes (attach copy) Date of revision:

Date:

Place:

Signature of Municipal Commissioner /Executive Officer

Related AI tags, queries and research notes

Translation